



Procedure No.: EXP202210347 (PS/00051/2023)

Appeal No. RR/00507/2023

Examined the appeal for reconsideration filed by the entity GRUPO MASSIMO DUTTI, S.A. with NIE: A78115201, responsible for the website, <https://www.massimodutti.com/> (hereinafter, "the appellant"), against the resolution issued by the Director of the Spanish Agency for Data Protection in the procedure, PS/00051/2023, for violation of the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons concerning the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (GDPR), and in the L.O. 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (LOPDPGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), and based on the following:

FACTS

FIRST: On June 13, 2023, the Director of the Spanish Agency for Data Protection issued a resolution in the sanctioning procedure, PS/00051/2023, opened against the entity, GRUPO MASSIMO DUTTI, S.A., which was notified on June 14, 2023, for a violation of Article 22.2 of the LSSI, with a fine of 5,000 euros (five thousand euros), for the deficiencies detected in the cookie policy, from April 19, 2023, to June 6, 2023.

SECOND: As proven facts of the aforementioned sanctioning procedure, the following was recorded:

First: In the verification carried out by this Agency on March 16, 2023, on the website <https://www.massimodutti.com/>, the following characteristics were verified in its "Cookie Policy":

a) Regarding the use of non-essential cookies without prior user consent, it was verified that, upon entering the main page and without performing any action on it, two performance cookies "AKA_A2" and "RT" were used, which, although appearing with the domain ".massidutti.com," are used by the entity "Akamai Technologies, Inc.," which is a computing platform for the global delivery of Internet content to other client companies, and whose objective is to optimize the response time to access requests for content made by the user. According to the entity "Akamai Technologies, Inc.," these cookies are necessary as they allow optimizing the response time of access requests to content. They claim that all information collected by these cookies is aggregated and, therefore, anonymous. Four cookies that could not be classified were also detected (ITXSESSIONID; MDSESSION; bm_mi; bm_sv), although the responsible party for the website identified them as necessary cookies.

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On the other hand, when consent was given by the user for the use of other cookies through the option available in the initial banner or through consent given in the control panel <>, it was verified that third-party cookies were installed: from Google, Bing.com; Clarity.ms; .teads.tv and from creativecdn.com.

b).- Regarding the cookie information banner present in the first layer, it was considered that it did not provide "clear and complete" information about the purposes of the processing, as it was limited to informing that cookies would be used "To improve site navigation, analyze its use, and collaborate with our marketing studies."

c).- Regarding the withdrawal of consent once given, it was verified that there was no mechanism or access to a permanent control panel that allowed the user to withdraw consent after it had been given, if they so desired.

It was for these reasons, due to the deficiencies detected, points b.) and c.), that on 22/03/23, sanctioning procedure PS/00051/2023 was initiated.

Second: In the verification carried out by this Agency on 19/04/23 on the website

<https://www.massimodutti.com/>, following the receipt of the allegations regarding the initiation of the

sanctioning file, it was verified, concerning the deficiencies detected in the Cookie Policy, the following:

a).- Regarding the cookie information banner present in the first layer, the following message could now be read: "We use our own and third-party cookies for analytical purposes and to show you advertising related to your preferences based on your browsing habits and your profile. You can configure or reject cookies by clicking on <>."

b).- Regarding the withdrawal of consent for the use of non-essential cookies, once given, it was verified that there was a mechanism or access to a permanent control panel at the bottom of the page <> that allowed access to the control panel for cookie management. However, if one wished to reject the use of cookies by clicking on the option <> or moving the toggle from the "ON" position to the "OFF" position in the different cookie groups and then clicking on the option <>, it was observed that the website continued to use the third-party cookies installed when they were accepted at the beginning. That is, it was verified that the option to withdraw consent once given by the user did not function.

It was for these reasons, due to the deficiencies detected in the Cookie Policy (point b), that on 24/04/23, a resolution proposal was made in which it was proposed that the Director of the Spanish Agency for Data Protection proceed to sanction the entity, GRUPO MASSIMO DUTTI, S.A. for violation of the provisions of Article 22.2 of the LSSI, regarding the irregularities detected in its "Cookie Policy." That is, regarding the cookie information banner.

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existing cookies in the first layer when the sanctioning file was opened and that were subsequently modified accordingly, and the impossibility of rejecting non-essential cookies once consent had been given.

Third: After receiving the allegations regarding the proposed resolution made by the entity, on 06/06/23 this Agency was able to verify on the website <https://www.massimodutti.com/> that, regarding the deficiencies detected in the cookie policy, once the user gave their consent for the use of non-essential third-party cookies, if they wished to reject them again, by using the control panel by clicking on the option <> or moving the cursor from the "ON" position to the "OFF" position of the different cookie groups, and clicking on <>, the website only reverted to using the technical or necessary cookies detected at the beginning. Therefore, it was verified that the deficiencies detected initially had already been remedied.

Notwithstanding the above, on 14/06/23, the Director of the Spanish Agency for Data Protection resolved the sanctioning file PS/00051/2023 sanctioned against the entity "Grupo Massimo Dutti," for the deficiencies detected in the cookie policy maintained by the entity, from the verification carried out on 19/04/23 until the last one on 06/06/23, when it was verified that such deficiencies had already been remedied.

THIRD: On 14/07/23, a written appeal for reconsideration was received by this Agency, presented by the appellant, in which, among other things, the following is alleged:

"In accordance with the provisions of the Dictionary of the Spanish Language of the Royal Spanish Academy, 'to use' (<https://dle.rae.es/utilizar>) is understood as: 1. tr. To make something serve a purpose. 2. tr. To take advantage of something or someone."

Based on this definition, MASSIMO DUTTI could in no case use non-technical or non-essential third-party cookies that the user had rejected once initial consent had been given, since the cookie blocking solution used by my client prior to the implementation of the deletion/expiration solution consisted of blocking those cookies with the rejection through Javascript code.

In this regard, both prior to and during the period indicated in the Resolution of the Spanish Agency for Data Protection, "from the verification carried out on 19/04/23 until the last one on 06/06/23," although the rejected cookies remained visible to the user, they were in no case used since they were blocked, as this party explained in the Allegations to the Proposal for Resolution and the Annexes that accompanied them.

Specifically, in the Allegations to the Proposal for Resolution and the Annexes that accompanied them, MASSIMO DUTTI established the following:

- In the First Allegation, reference was made and the system for blocking rejected cookies through Javascript code was described. "In case the user had rejected the cookies during navigation, they remained..."

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being in the browser's cookie system, but in no case were they used, as their use was blocked through Javascript code." or "In the section "2. Cookie Blocking Model" of the document "Cookie System," which is included as Annex I, this model used so far on the Site is described and exemplified, consisting of blocking the use of cookies rejected by the user through Javascript code."

- In Allegation Three, reference was made to the change introduced in the Cookie Policy, whereby it is specified that "when you reject a cookie but it cannot be deleted, we always proceed to block it." It should be noted that FD III-1 of the sanctioning Resolution states that "...the website owner has modified the cookie policy to adapt it to current regulations," thereby accepting the cookie blocking system once rejected as a valid option in accordance with the Regulations.

- In Annex I to the Allegations, the cookie blocking system is described in detail: "1.1. Cookie Blocking Model This is the model used so far by Massimo Dutti. It consists of blocking the use of cookies rejected by the user through Javascript code. (...) As we will see below, it ensures that the use of cookies occurs only when the user has explicitly accepted them.

At Massimo Dutti, we use the tools provided by OneTrust to review cookie acceptance in real-time. All cookies used in the system are reviewed just before their use to ensure that the user has given their express acceptance to the category to which the cookie refers.

In the event that the user has given their acceptance to the specific category, the code will generate the cookie and insert it into the browser's system. If the user rejects them in another browsing session, they will remain in the browser's cookie system.

However, despite this, they are never used, as their use is blocked through our own Javascript code. If the user never grants permission for the specific category, that cookie will not be used or generated.

2.1. Cookie Blocking through JavaScript:

- Checking cookie acceptance: OneTrust provides us with an object called OnetrustActiveGroups, which we rely on to develop the function isPolicyAllowed, which indicates to us which cookies the user has accepted before the webpage has loaded.
- Blocking or using the cookie based on whether it has been accepted: At the moment the code needs to use a cookie, it is checked whether it has been accepted. If not, its use is blocked via JavaScript."

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Finally, this party must insist that the technological solution implemented, consisting of rejecting cookies being removed from the browser's cookie storage system, was implemented by MASSIMO DUTTI as part of its continuous improvement processes in compliance and due to its concern for the user, but in no case because it considered that the cookie blocking model violated the Regulations.

LEGAL GROUNDS

All administrative actions of a sanctioning nature must comply with the principle of typicity, defined in Article 27 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, as follows: "1. Only violations of the legal order that are provided for as such violations by a Law constitute administrative infringements (...). 2. Only by committing administrative infringements may sanctions be imposed, which, in any case, will be delimited by Law."

The imposed sanction is not in accordance with the principle of typicity, in that:

- The Resolution is based on a violation of Article 22.2 LSSI, which states (the underlining is our own) "Service providers may use storage and data retrieval devices on the terminal equipment of the recipients, provided that they have given their consent..." during the period from April 19, 2023, to June 6, 2023.
- The term "Use," in accordance with the definition included in the Dictionary of the Spanish Language of the Royal Spanish Academy, means "To make something serve a purpose" or "To take advantage of something or someone."
- MASSIMO DUTTI, once the third-party cookies had been rejected by the user, could not use them as they were blocked through Javascript code, that is, it could not make those cookies serve any purpose, nor could it take advantage of them.
- Consequently, the non-compliance that the Resolution establishes concerning the period from April 19, 2023, to June 6, 2023, did not occur, as MASSIMO DUTTI complied with the provisions of Article 22.2 LSSI, both prior to and during that period, through the explained blocking solution that did not allow the use of cookies once rejected.
- Therefore, it is considered that there is no legal basis for imposing a sanction against my client for violation of Article 22.2 LSSI concerning the Facts recorded in the sanctioning Resolution, as those facts do not correspond in any way to the type of non-compliance with the Regulations that is intended to be attributed to MASSIMO DUTTI.

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In light of the above, I REQUEST THIS OFFICE to consider this Appeal as presented, to kindly admit it, and, after the appropriate legal proceedings, to issue a Resolution in which, based on the facts and legal grounds previously stated, it declares the non-existence of any infringement of Article 22.2 of the LSSI by my client in relation to the facts described in the sanctioning Resolution.

LEGAL GROUNDS

I

Competence.

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 43.1, second paragraph, of the LSSI.

II

Response to the allegations

The joint assessment of the documentation in the procedure brings to the attention of the AEPD a view of the reported action that has been reflected in the facts declared proven above. However, in response to the allegations presented by the entity being appealed in the appeal for reconsideration, the following should be noted:

a).- Regarding point "First," concerning the assertion that "MASSIMO DUTTI, under no circumstances could use non-technical or necessary third-party cookies that the user had rejected once initial consent was given, since the cookie blocking solution used by my client prior to the implementation of the deletion/expiration solution consisted of blocking those cookies with rejection through Javascript code (...).

It should be noted that, during the verification carried out by this Agency on 03/16/23 on the website <https://www.massimodutti.com/>, it was confirmed that when the user gave consent for the use of third-party cookies, the following cookies were started to be used: MUID; ts; CONSEND; SOCS; CLID; _ga; _gid; ttp; u; NID; AEC; _pinterest_ct_ua and 1P_JAR, but there was no mechanism or access to a permanent control panel that allowed the user to withdraw consent after it had been given, if the user so desired, as can be seen in the screenshots obtained from the website (actions taken on 02/07/23 "Consent revocation action," page 6196 of the file and in the action taken on 03/16/23, page 6205 of

the file).

It was due to these deficiencies detected on the website in question that, on 03/22/23, the sanctioning procedure PS/00051/2023 was initiated.

On 04/18/23, the entity being appealed submitted a written statement of allegations regarding the initiation of the file in which it denied that, concerning the impossibility of managing the cookies used once initial consent was given, there was no...

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no mechanism that allowed the user to reject the cookies used, as there was a link to the "Cookie Settings" where cookies could be rejected with a simple click, since the link to "Cookie Settings" was always available in the horizontal menu located in the footer of the website.

Based on these allegations, this agency re-checked the cookie policy of the website

<https://www.massimodutti.com/> on 19/04/23, confirming that, regarding the withdrawal of consent once given, it could now be verified that there was a mechanism or access to the permanent control panel at the bottom of the webpage "Cookie Settings" that allowed access to the control panel for managing cookies whenever the user desired, as can be seen in the diligence carried out by this Agency dated 18/04/23, page 6254 of the file.

However, if the user wished to withdraw consent and reject the use of cookies by clicking on the "Reject All" option or moving the cursor from the "ON" position to the "OFF" position of the different cookie groups and clicking on "Confirm my Preferences" in the control panel, it was observed that the website continued to use the third-party cookies that had been installed when they were accepted at the beginning. That is, the website's responsible party had enabled a mechanism through which the user could withdraw the consent given for the use of third-party cookies, but it did not work as it was verified that the website continued to use the same unnecessary third-party cookies that had been installed initially, as was confirmed in the diligence carried out by this Agency dated 18/04/23, page 6254 of the file.

Therefore, on 24/04/23, in the proposed resolution, it was suggested that the Director of the Spanish Data Protection Agency proceed to sanction the entity for violating the provisions of Article 22.2 of the LSSI, regarding the irregularity detected in its "Cookie Policy," in the sense of continuing to use unnecessary third-party cookies when the user wishes to withdraw consent.

The allegations that the entity presented to this proposed resolution, which it has reiterated in the current appeal for reconsideration, stated that "In case the user had rejected the cookies during navigation, they remained in the browser's cookie system, but in no case were they used, as their use was blocked through Javascript code."

On 06/06/23, this Agency conducted a new check of the website in question, verifying regarding the detected irregularity that, now, if the user wishes to withdraw the consent initially given for the use of unnecessary third-party cookies, the website removed them, reverting to using only the technical or necessary cookies detected at the beginning, as can be confirmed in the diligence carried out by this Agency dated 06/06/23, page 6307 of the file.

Therefore, on 14/06/23, the Director of the Spanish Data Protection Agency issued a resolution of the sanctioning file PS/0051/2023, sanctioning the entity "GRUPO MASSIMO DUTTI, S.A. with NIE: A78115201, indicating therein, "(...) although it is confirmed that the responsible party of the website has

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modified the cookie policy adapting it to current regulations, this does not eliminate the proven non-compliance, since this Agency conducted the first check of the website on 16/03/23 (...)"

Therefore, although in the allegations presented by the entity in this appeal document, it is stated that, "although the rejected cookies remained visible to the user, they were never used as they were blocked," the evidence shows that, when the sanctioning file was opened, there was no mechanism

that allowed the user to withdraw the consent given for the use of third-party cookies.

And that later, when the entity became aware of the opening of said file, there is evidence that it modified the website urging the permanent mechanism that allowed the user to access the "Control Panel" to modify the consent given, although it was verified that it did not work correctly since, even if the user withdrew the consent given, the non-essential third-party cookies continued to appear on the device.

The entity now states that "although they remained visible, they were blocked" but, if this was true as the entity claims, at no time was the user informed of this fact. That is, the user was not informed, for example, that their request to withdraw consent had been addressed and that the cookies had been blocked, even though they continued to appear on the device as active.

Later, when the entity became aware that the proposed resolution suggested sanctioning the entity for these deficiencies, the entity implemented, according to itself, the technological solution that the rejected cookies be removed from the system instead of blocked, claiming that it was due to "its concern for the user".

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and other generally applicable ones, the Director of the Spanish Agency for Data Protection:

RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by GRUPO MASSIMO DUTTI, S.A. with NIE: A78115201, against the resolution issued by the Director of the Spanish Agency for Data Protection on 13/06/23, in the sanctioning procedure PS/00051/2023.

SECOND: TO NOTIFY this resolution to GRUPO MASSIMO DUTTI, S.A.

THIRD: To warn the sanctioned party that the imposed sanction must be enforced once this resolution becomes executive, in accordance with the provisions of article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to article 62 of Law 58/2003, of December 17, by making the payment into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A. or otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in

article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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